

26CHCV00750 26CHCV00750

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-06-30

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Case Number: 26CHCV00750 Hearing Date: June 30, 2026 Dept: F47

Dept. F47

Date: 6/30/26

Case #26CHCV00750

APPLICATION FOR
ADMISSION PRO HAC VICE

Application filed 6/4/26.

MOVING PARTY: Defendant R&L Carriers Shared Services,
LLC

RESPONDING PARTY: Plaintiff Luiz Perez

NOTICE: ok

RELIEF REQUESTED: An order granting the
application of attorney J. Timothy McDonald for admission pro hac vice
on behalf of Defendant R&L Carriers Shared Services, LLC.

RULING:

On 6/4/26, Defendant R&L Carriers Shared Services,
LLC (Defendant) filed and served the instant application for an order granting
the application of attorney J. Timothy McDonald for admission pro hac vice
on behalf of Defendant.

CRC 9.40 provides in relevant part:

“(c) Application

(1) Application in superior
court

A person desiring to appear as
counsel pro hac vice in a superior court must file with the
court a verified application together with proof of service by mail in
accordance with Code
of Civil Procedure section 1013a of a copy of the application and of
the notice of hearing of the application on all parties who have appeared in
the cause and on the State Bar at its San Francisco office. The notice of
hearing must be given at the time prescribed in Code
of Civil Procedure section 1005 unless the court has prescribed a
shorter period.”

Notice of the application was not given in the time
prescribed by CCP 1005. The application
was filed and served on 6/4/26 which did not provide 16 court days plus 5
calendar days notice as required by CCP 1005(b) for service by mail for the
6/30/26 hearing date. Even if electronic
service was considered, the service does not provide the 16 court days plus 2
court days notice required for electronic service. CCP 1005(b); CCP 1010.6(a)(2)(B). Additionally, the proofs of service
attached
to the moving papers do not include the email address of record for Plaintiff's
counsel which is: .

The declaration of attorney Cheryl L. Schreck in support
of this application indicates that attorney McDonald “is a member of the State
Bar of Ohio and was admitted to practice in 1990.” (See Schreck Decl.). However, attorney McDonald indicates he “was
admitted to practice by the bar of Georgia in 1998” and is “also admitted to
practice by the bars of the District of Columbia, New Jersey, and
Pennsylvania.” (McDonald Decl. ¶4).

If Plaintiff's counsel appears and waives the defect in
notice and Defendant's counsel provides evidence that the application was
received and accepted by the California State Bar and corrects the defect

mentioned above in attorney Schreck's declaration, the application will be granted. If not the matter will be continued to allow for proper/sufficient notice and correction of the Schreck declaration.

Dept. F47

Date: 6/30/26

Case #26CHCV00750

APPLICATION FOR
ADMISSION PRO HAC VICE

Application filed 6/4/26.

MOVING PARTY: Defendant R&L Carriers Shared Services,
LLC

RESPONDING PARTY: Plaintiff Luiz Perez

NOTICE: ok

RELIEF REQUESTED: An order granting the application of attorney Anthony C. White for admission pro hac vice on behalf of Defendant R&L Carriers Shared Services, LLC.

RULING:

On 6/4/26, Defendant R&L Carriers Shared Services, LLC (Defendant) filed and served the instant application for an order granting the application of attorney Anthony C. White for admission pro hac vice on behalf of Defendant.

CRC 9.40 provides in relevant part:

“(c) Application

(1) Application in superior
court

A person desiring to appear as counsel pro hac vice in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period."

Notice of the application was not given in the time prescribed by CCP 1005. The application was filed and served on 6/4/26 which did not provide 16 court days plus 5 calendar days notice as required by CCP 1005(b) for service by mail for the 6/30/26 hearing date. Even if electronic service was considered, the service does not provide the 16 court days plus 2 court days notice required for electronic service. CCP 1005(b); CCP 1010.6(a)(2)(B). Additionally, the proofs of service attached to the moving papers do not include the email address of record for Plaintiff's counsel which is: .

Otherwise, the application meets the requirements of CRC 9.40.

If Plaintiff's counsel appears and waives the defect in notice and Defendant's counsel provides evidence that the application was received and accepted by the California State Bar, the application will be granted. If not the matter will be continued to allow for proper/sufficient notice.